

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

March 8, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:05 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal (arriving at 7:30 p.m.) and Dicky Shanor. Absent: Dr. Mark Rinne and Jeff White. Also present were: Kylie Soden, Deputy City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney, Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding wages, salaries, or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. She stated that spokespersons for the City are herself and Dicky Shanor, and Jonathan Bertsch and Andrew Dykeshorn are the spokespersons for the Union. She noted that any collective labor agreement that may be reached must be approved by the governing body with the agreement placed on the City Council agenda for approval.

Mayor Orr stated, with agreement from the Union, the “\$20/hr Analysis” handout that was distributed by the City at the March 6th meeting had been provided to the media. Mr. Bertsch briefly outlined modifications proposed by the Union, which were in addition to their last counteroffers, to the following sections, or portions thereof: Section 15, Company Strength; Section 22, Classification of Employment and Basic Wages; Section 27, Wellness/Fitness Program, and Section 33, Uniforms. Upon inquiry, Mr. Bertsch provided clarifications on Sections 27 and 15. Mr. Shanor moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:20 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:54 p.m. and noted that Mr. Roybal had joined the meeting [City Clerk note: Mr. Roybal joined executive session at 7:30 p.m.]. She expressed the importance of predictability of overtime, sustainability of services and management rights. Mr. Shanor presented the City’s counteroffer on the following sections, or portions thereof: Section 4, Term of Agreement; Section 17,

Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 23, Overtime; Section 27, Wellness/Fitness Program; Section 29, Sick Leave, and Section 33, Uniforms. Mayor Orr recessed the meeting at 8:06 p.m. to allow Union representatives to caucus, and Mr. Shanor moved to meet in executive session, seconded by Mr. Roybal. Motion carried. Voting “yes” -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 8:10 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:32 p.m. Mr. Bertsch reviewed dates for future special meetings that the Union is available to meet. Upon inquiry, Mr. Shanor clarified information on the City’s proposal for Section 33, Uniforms, stating the City has no objection to the Union’s most recent offer, with the City’s proposed changes to subsection C. Mr. Bertsch advised that the Union has no objection to Section 33, and presented and explained counteroffers on the following sections, or portions thereof: Section 22, Classification of Employment and Basic Wages; Section 23, Overtime, and Section 29, Sick Leave.

Mayor Orr stated the next special meeting would be held on March 10, 2017. She stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 8:40 p.m.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 23, 2017